

COURT OF APPEALS, DIVISION I

STATE OF WASHINGTON

ZACKARIAH BENNETT,

Appellant,

v.

MELVINA MANNING,

Respondent.

Case No. 87007-6

NOTICE OF RESPONDENT'S NON-COMPLIANCE WITH COURT ORDER AND RENEWED REQUEST TO GRANT MOTION TO SUPPLEMENT RECORD

TO THE COURT AND TO RESPONDENT'S COUNSEL:

Appellant Zackariah Bennett, pro se, respectfully notifies the Court of the following:

I. PROCEDURAL HISTORY

On November 13, 2025, Appellant filed a Motion to Supplement the Record pursuant to RAP 9.11(a).

On November 24, 2025, the Court entered a notation ruling directing that "respondent shall file a response no later than December 1, 2025."

II. RESPONDENT'S NON-COMPLIANCE

As of the date of this filing, December 6, 2025, Respondent has failed to file any response as ordered by the Court. The December 1, 2025 deadline has passed without compliance.

III. REQUEST FOR RELIEF

In light of Respondent's failure to timely respond, Appellant respectfully requests that the Court:

1. **Grant Appellant's Motion to Supplement the Record** as unopposed; and
2. **Order the supplementation of the appellate record** to include:
 - **Exhibit A:** Facebook communications between Appellant and Respondent (2010-2019), introduced into evidence on November 16, 2023; and

- **Exhibit B:** Relevant excerpts from the June 28, 2024 summary judgment hearing transcript.

IV. GROUNDS FOR RELIEF

A. The Motion Should Be Granted as Unopposed

Respondent's failure to file a timely response constitutes a waiver of any objection to the requested supplementation. The Court's November 24, 2025 order contemplated a response by December 1, 2025, and the absence of such response permits the Court to grant the motion without further briefing.

B. The Requested Materials Are Essential to Appellate Review

The exhibits sought to be added were part of the trial court proceedings but were omitted from the appellate record by error or accident. RAP 9.11(a) authorizes supplementation under these circumstances.

Exhibit A (Facebook communications) was introduced into evidence on November 16, 2023, and demonstrates genuine issues of material fact regarding Respondent's fraudulent inducement and ongoing interference with Appellant's parental rights. These communications are central to Appellant's arguments on appeal regarding tolling of the statute of limitations and the existence of disputed material facts precluding summary judgment.

Exhibit B (transcript excerpts) documents the trial court's reliance on inadmissible evidence and extra-record materials at the June 28, 2024 summary judgment hearing, demonstrating violations of CR 56(c) and (h).

Without these materials, the appellate record is incomplete and does not fairly present the issues raised on appeal.

V. CONCLUSION

For the foregoing reasons, and in light of Respondent's non-compliance with this Court's order, Appellant respectfully requests that the Court grant his Motion to Supplement the Record and order the inclusion of Exhibits A and B in the appellate record.

DATED: December 6, 2025

Respectfully submitted,

Zackariah Bennett

Pro Se Appellant

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CERTIFICATE OF SERVICE

I certify that on December 6, 2025, I served a true and correct copy of the foregoing Notice upon:

Nancy Ann Gass

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Method of Service: ☐ U.S. Mail, Postage Prepaid

☐ Email

☐ Court Electronic Filing System

Zackariah Bennett